

25STCV24684 25STCV24684

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-03

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Case Number: 25STCV24684 Hearing Date: August 3, 2026 Dept: 406

MANUEL JOHNSON,

Plaintiff,

v.

LOS ANGELES COUNTY METROPOLITAN

TRANSPORTATION AUTHORITY, et al.,

Defendants.

Case No.: 25STCV24684

Hearing Date: August 3, 2026

[TENTATIVE]

order RE:

los angeles county metropolitan

transportation authority's motions to compel responses to discovery (CRS#
1622, 5386, 9658)

BACKGROUND

On August 21, 2025, Plaintiff Manuel

Johnson filed this action against Defendants Los Angeles County Metropolitan

Transportation Authority (MTA), Rene Denise Honer (Honer), and Lawrence Wilson

(Wilson). Plaintiff filed the operative First Amended Complaint on January 28,

2026, asserting causes of action for (1) negligence and (2) violation of Government Code sections 815.2(a) and 820(a).

The lawsuit arises out of an auto collision between a bus and another vehicle that occurred in November 2024. Plaintiff was a passenger in the bus operated by MTA, Honer was driving the bus, and Wilson was driving the other vehicle. The complaint alleges that Honer drove on the wrong side of the road, while Wilson made an unsafe turn, leading to the collision.

On January 15, 2026, Wilson filed a cross-complaint against MTA and Honer for indemnity, declaratory relief, and apportionment.

On March 27, 2026, MTA and Honer filed a cross-complaint against Wilson for indemnity, declaratory relief, and apportionment.

On April 17, 2026, the Court entered dismissal of the underlying complaint against Wilson with prejudice pursuant to Plaintiff's request.

On May 11, 2026, the Court entered dismissal of Wilson's cross-complaint without prejudice pursuant to Wilson's request.

On June 18, 2026, MTA filed the instant three motions to compel Wilson's responses to interrogatories and requests for production.

DISCUSSION

MTA served Wilson with form interrogatories, special interrogatories, and requests for production on April 1, 2026. After MTA granted an extension, Wilson served unverified responses on May 18, 2026, consisting solely of objections. MTA moves to compel verified responses without objection.

Ordinarily, unverified responses are tantamount to no response at all. (See *Appleton v. Super. Ct.* (1988))

206 Cal.App.3d 632, 636.) However, responses containing solely objections need not be verified. (Code Civ. Proc., §§ 2030.250(a); 2031.250(a).) Because Wilson's responses contained only objections, they were properly unverified. And because Wilson served responses, there is no basis for a motion to compel.

To

the extent MTA takes issue with the substance of the responses, including objections, MTA should have filed motions to compel further. (See Code Civ. Proc., §§ 2030.300, 2031.310.) MTA did not do so, nor did it file the requisite separate statement. (See Cal. Rules of Ct., Rule 3.1345(a).) MTA's argument that meet and confer was not required further indicates that MTA only filed motions to compel in the first instance. (See Mtn. 4:23-28; Code Civ. Proc., §§ 2030.300(b)(1), 2031.310(b)(2).)

CONCLUSION

Los Angeles County Metropolitan

Transportation Authority's motions to compel responses are DENIED.